

Master Services Agreement

Luwah Technologies LLC standard terms for automation, web and technology services

Agreement Summary

Agreement No.	[MSA-YYYY-NN]
Client	[Client legal name and entity type]
Client contact	[Name, title, email]
Effective Date	[Month DD, YYYY]
Initial SOW reference	[SOW-YYYY-NN, or None at signing]
Total value	[Sum of signed SOWs, updated as SOWs are added]
Initial Term end	[Effective Date plus 12 months]

Template v1.0, 2026-09-17. Replace every bracketed field, fill or delete every schedule, and delete this note before sending. The signed document governs, not this template.

This Master Services Agreement (the "Agreement") is between Luwah Technologies LLC, a Colorado limited liability company ("Provider"), and the client named in the Agreement Summary above ("Client"). Provider and Client are each a "Party" and together the "Parties". The Agreement takes effect on the Effective Date.

This Agreement sets the terms that apply to every project. Each project is described in a Statement of Work. Signing a Statement of Work does not reopen these terms.

1. Definitions

- 1.1 "Statement of Work" or "SOW"** means a document in substantially the form of Exhibit A, signed by both Parties, that describes the Services, Deliverables, fees and dates for a project or a recurring service.
- 1.2 "Services"** means the work Provider performs under an SOW.
- 1.3 "Deliverables"** means the items an SOW identifies for delivery to Client.
- 1.4 "Work Product"** means the Deliverables and any other original material Provider creates specifically for Client under an SOW. Work Product excludes Background IP.
- 1.5 "Background IP"** means tools, code, libraries, templates, workflows, methods, know-how and documentation that Provider created or acquired outside the Services, or creates during the Services for general use rather than specifically for Client, and any improvements to them. Exhibit B lists the Background IP known at signing. Background IP that is not listed is still Background IP.

- 1.6 "Client Materials"** means the data, content, credentials, accounts, systems and other material Client provides to Provider.
- 1.7 "Confidential Information"** means non-public information one Party discloses to the other, in any form, that is marked confidential or that a reasonable person would treat as confidential. It includes business data, credentials, pricing, customer lists, source code and the terms of this Agreement.
- 1.8 "Change Order"** means a document in substantially the form of Exhibit C, signed by both Parties.
- 1.9 "Acceptance" and "Project Completion"** have the meanings in Section 10.

2. How This Agreement and SOWs Work Together

- 2.1** This Agreement applies to every SOW. Each SOW incorporates this Agreement. Together they form one contract for that SOW.
- 2.2** An SOW may change a term of this Agreement only by naming the section it changes. The change applies to that SOW only.
- 2.3** If the Parties signed a proposal, letter of agreement or quote for the same work, this Agreement and the SOW control over it.
- 2.4** Each SOW is a separate obligation. Ending one SOW does not end this Agreement or any other SOW.

3. Services

- 3.1** Provider will perform the Services and deliver the Deliverables described in each SOW with reasonable skill and care, consistent with industry standards.
- 3.2** Where an SOW defines a Deliverable by its outcome, Provider chooses the method, tools and platforms used to reach that outcome. A change to a third-party platform, API or service that requires a different method is not a change in scope.
- 3.3** Work not described in an SOW is out of scope. Out-of-scope work needs a signed Change Order before it starts. Provider may decline a change request.
- 3.4** Provider may use subcontractors. Provider remains responsible for their work and binds each of them in writing to confidentiality and intellectual property terms at least as protective as this Agreement.
- 3.5** Provider may use AI-assisted tools to produce Work Product. Provider reviews all such output and remains responsible for the Work Product. Provider will not submit Client Confidential Information to an AI tool that trains on submitted data.

4. Client Responsibilities

- 4.1** Client will provide, at its own cost, the access, information, decisions and approvals each SOW requires, and will respond to Provider's requests within 3 business days unless the SOW says otherwise.
- 4.2** Client will name one point of contact with authority to approve Deliverables and Change Orders.
- 4.3** Client is responsible for the accuracy and lawful use of Client Materials, for holding the rights needed to give them to Provider, and for backups of Client data before, during and after the Services, unless an SOW assigns backups to Provider.
- 4.4** Delay caused by Client extends every affected date by at least the length of the delay. If Client delay exceeds 30 days, Provider may invoice the work completed to date and pause the SOW until Client is ready to continue.

5. Fees and Payment

- 5.1** Client pays the fees stated in each SOW. All amounts are in US dollars.
- 5.2** Unless the SOW says otherwise, a deposit of 50% of any fixed fee is due when the SOW is signed. Work starts when the SOW is signed and the deposit has cleared.
- 5.3** Hourly work is billed in 15-minute increments at the rate schedule in the SOW. Provider invoices hourly work monthly with an itemized summary, unless the SOW says otherwise.
- 5.4** Invoices are due within 14 days of the invoice date (Net 14). Client pays by ACH, credit card, debit card, or another method Provider accepts in writing.
- 5.5** Overdue amounts accrue a late charge of 1.5% per month, or the highest rate the law allows if that is lower. If an invoice is more than 10 days overdue, Provider may suspend the Services and withhold Deliverables after 5 days' written notice, until payment clears.
- 5.6** Client must dispute an invoice in writing within 7 days of the invoice date and state the reason. Client pays the undisputed part on time. The Parties resolve the dispute in good faith.
- 5.7** Third-party costs an SOW requires, such as hosting, software licenses, domain registrations and API usage, are pass-through costs. Client pays them directly where possible. Where Provider pays them, Provider invoices them at cost with receipts, and obtains Client's prior written approval for any single item over \$100.
- 5.8** Fees exclude taxes. Client pays any sales, use or similar tax that applies to the Services, other than tax on Provider's income.

- 5.9** Deposits are non-refundable once work has started. Provider applies them to work completed.

6. Term and Termination

- 6.1** This Agreement starts on the Effective Date and continues for 12 months (the "Initial Term"). It then renews for successive 12-month terms unless either Party gives written notice of non-renewal at least 30 days before the current term ends. Expiry of this Agreement does not end an SOW already in progress. This Agreement continues to govern that SOW until it is complete or terminated.
- 6.2** An SOW for a recurring service, such as hosting, maintenance or a retainer, runs month to month after any initial period stated in the SOW. Either Party may end it with 30 days' written notice.
- 6.3** Either Party may terminate an SOW for convenience with 14 days' written notice. Client pays for all Services performed and expenses incurred up to the termination date, including work in progress, at the SOW rates or, for a fixed fee, a proportionate share of it.
- 6.4** Either Party may terminate this Agreement or an SOW for material breach if the breach is not cured within 10 days of written notice describing it. Non-payment is a material breach.
- 6.5** When an SOW ends for any reason:
- Client pays all amounts due within 14 days.
 - On receipt of payment, Provider delivers the Work Product completed to that date.
 - Provider returns or deletes Client Materials and Client Confidential Information within 30 days, except copies held in routine backups or that the law requires Provider to keep.
 - Client revokes Provider's access to Client systems, and Provider deletes any Client credentials it holds, within 5 business days.
 - If Client asks, Provider gives reasonable transition assistance at the hourly rate in the SOW or Provider's then-current rate.
- 6.6** Sections 5, 7, 8, 9, 10.3 to 10.5, 11, 13 and 14, and any other term that by its nature should survive, survive the end of this Agreement.

7. Intellectual Property

- 7.1 Client Materials.** Client keeps all rights in Client Materials. Client grants Provider a non-exclusive license to use Client Materials only to perform the Services.

- 7.2 Work Product.** When Client has paid in full all fees due under the applicable SOW, the Work Product is a "work made for hire" for Client to the extent the law allows. To the extent any Work Product is not a work made for hire, Provider assigns to Client, on that payment, all right, title and interest in it worldwide, including copyright. Until payment in full, Provider owns the Work Product and Client may use it only to review it.
- 7.3 Background IP.** Provider keeps all rights in Background IP. Where Background IP is incorporated into a Deliverable, Provider grants Client a perpetual, worldwide, non-exclusive, royalty-free license to use, copy, modify and distribute that Background IP as part of the Deliverable for Client's business purposes. Client may not sell or license the Background IP on its own or separate it from the Deliverable for that purpose.
- 7.4 Third-party and open source components.** Deliverables may include third-party or open source components. Those components remain subject to their own licenses, which Provider will identify on request. Provider will not include a component whose license would require Client to publish Client's own source code without Client's written approval.
- 7.5 General knowledge.** Nothing in this Agreement stops Provider from using the general skills, knowledge, experience and techniques it gains while performing the Services, provided Provider does not use or disclose Client Confidential Information.
- 7.6 Portfolio.** Provider may name Client and describe the general nature of the Services in Provider's portfolio and marketing only with Client's prior written consent, which may be given by email, and without disclosing Confidential Information. Client may withdraw consent at any time by written notice.
- 7.7 Further assurances.** Each Party will sign the documents reasonably needed to record the rights granted in this Section.

8. Confidentiality

- 8.1** Each Party will use the other Party's Confidential Information only to perform or receive the Services. Each Party will protect it with at least the care it uses for its own confidential information, and never less than reasonable care. Each Party will disclose it only to its employees, contractors and advisers who need to know it and who are bound by written confidentiality obligations at least as protective as this Section.
- 8.2** Confidential Information does not include information that (a) is or becomes public through no fault of the receiving Party, (b) the receiving Party already knew without a duty of confidence, (c) the receiving Party lawfully receives from a third party without a duty of confidence, or (d) the receiving Party develops independently without using the other Party's Confidential Information.

- 8.3 A Party may disclose Confidential Information when the law or a court requires it, after giving the other Party prompt notice where lawful and cooperating with any effort to limit the disclosure.
- 8.4 These obligations last for 3 years after this Agreement ends. For trade secrets and credentials, they last as long as the information remains a trade secret or the credential remains active.
- 8.5 If a mutual non-disclosure agreement between the Parties is in force, this Section applies in addition to it. Where they conflict, the term that gives the disclosing Party more protection applies.

9. Credentials, Data and Security

- 9.1 Client will grant Provider the least access needed for the Services, through named accounts or roles where the platform allows, rather than shared passwords.
- 9.2 Provider stores Client credentials in an encrypted password manager, enables multi-factor authentication where the platform offers it, does not share credentials with anyone not working on the Services, and does not store them in email, chat or source code.
- 9.3 Provider will notify Client within 72 hours of learning of unauthorized access to Client systems or data that arises from the Services, and will cooperate with Client's response.
- 9.4 Client remains responsible for its own data and for the legal obligations that apply to it, including any privacy or sector-specific law. Provider will follow Client's reasonable written instructions about Client data. Where the Services involve regulated data, the SOW must say so and may add terms.
- 9.5 Provider is not responsible for the availability, performance or changes of third-party platforms, services or APIs, or for problems caused by changes Client or a third party makes to a Deliverable after Acceptance.
- 9.6 Access ends with the SOW. Section 6.5 applies.

10. Acceptance and Warranty

- 10.1 **Acceptance.** When Provider delivers a Deliverable, Client has 7 business days (the "Review Period") to test it against the acceptance criteria in the SOW and to report any material non-conformance in writing. Provider corrects each reported non-conformance and redelivers, and a new Review Period of 5 business days starts. A Deliverable is accepted ("Acceptance") on the earliest of Client's written acceptance, the end of a Review Period with no written report, or Client's use of the Deliverable in production.

- 10.2 Project Completion.** Acceptance of the final Deliverable in an SOW completes that SOW ("Project Completion"). The final invoice for fixed-fee work is issued on Project Completion unless the SOW says otherwise.
- 10.3 Warranty.** For 30 days after Acceptance, Provider warrants that each Deliverable will materially conform to the SOW. Client's sole remedy is that Provider will correct the non-conformance at no charge within a reasonable time or, if Provider cannot, refund the fee paid for that Deliverable. This warranty does not cover problems caused by Client Materials, by changes Client or a third party makes, by third-party platform changes, or by use outside the SOW.
- 10.4 Authority and non-infringement.** Provider warrants that it has the right to enter this Agreement and that, to its knowledge, the Work Product will not infringe a third party's intellectual property rights.
- 10.5 Disclaimer.** Except as stated in this Section, Provider provides the Services and Deliverables as is and disclaims all other warranties, express or implied, including merchantability, fitness for a particular purpose and non-infringement. Provider does not warrant that a Deliverable will run without interruption or error, or that it will produce any business result, revenue or saving. Recommendations are advisory. Client decides whether to act on them.

11. Limitation of Liability

- 11.1** Neither Party is liable to the other for indirect, incidental, special, consequential or punitive damages, or for lost profits, revenue, data or business opportunity, however caused, even if told they were possible.
- 11.2** Each Party's total liability arising out of or related to an SOW is limited to the fees Client paid to Provider under that SOW in the 12 months before the event that gave rise to the claim.
- 11.3** The limits in this Section do not apply to (a) a Party's breach of Section 8, (b) Client's payment obligations, (c) a Party's gross negligence, fraud or willful misconduct, or (d) a Party's infringement of the other Party's intellectual property.
- 11.4** Client is responsible for backups under Section 4.3. Provider is not liable for data loss that a current backup would have prevented.

12. Relationship and Insurance

- 12.1** Provider is an independent contractor. Nothing in this Agreement creates a partnership, joint venture, employment or agency relationship. Neither Party may bind the other.

- 12.2 Provider is not exclusive to Client and may provide services to others, including Client's competitors, subject to Section 8.
- 12.3 Provider maintains professional liability (errors and omissions) and cyber liability insurance during the term and will provide a certificate of insurance on request.

13. Governing Law and Disputes

- 13.1 The law of the State of Colorado governs this Agreement, without regard to its conflict of law rules.
- 13.2 The Parties will first try to resolve any dispute through good-faith negotiation between their principals for 30 days after one Party gives written notice of the dispute.
- 13.3 If negotiation fails, the Parties will mediate in Arapahoe County, Colorado, or by video conference, with a mediator they agree on, and will share the mediator's fees equally.
- 13.4 If mediation fails, either Party may bring the dispute in the state or federal courts located in Arapahoe County, Colorado, and each Party submits to their jurisdiction. Either Party may seek an injunction in any court to protect its Confidential Information or intellectual property without first negotiating or mediating.
- 13.5 The prevailing Party in any action to enforce this Agreement may recover its reasonable attorneys' fees and costs.

14. General

- 14.1 **Notices.** Notices must be in writing and sent by email to the address in the signature block. A notice of breach or termination must also be sent by courier or certified mail to the notice address in the signature block. Email notice is effective on the next business day after sending, unless the sender receives a delivery failure.
- 14.2 **Entire agreement.** This Agreement, its Exhibits and each SOW are the entire agreement between the Parties about their subject matter. They replace all earlier proposals, discussions and agreements about it.
- 14.3 **Amendment and waiver.** Changes must be in writing and signed by both Parties. A signature by email or through an e-signature platform counts. A Party's failure to enforce a term is not a waiver of it.
- 14.4 **Assignment.** Neither Party may assign this Agreement without the other Party's written consent, except to a successor to substantially all of its business, on written notice.
- 14.5 **Force majeure.** Neither Party is liable for delay or failure caused by events beyond its reasonable control, including natural disaster, epidemic, government action, war, civil unrest, labor dispute, or failure of the internet, a utility or a third-party platform. The

affected Party will notify the other promptly and resume performance as soon as it can. Payment for work already performed is not excused.

14.6 Severability. If a court finds a term unenforceable, the court will limit it to the minimum extent needed, and the rest of this Agreement stays in effect.

14.7 Counterparts and electronic signature. This Agreement and any SOW may be signed in counterparts and electronically. An electronic or scanned signature has the same effect as an original.

14.8 Headings. Headings are for convenience only and do not affect interpretation.

14.9 Independent advice. Each Party has had the opportunity to obtain independent legal advice before signing.

Signatures

Each Party signs below to agree to these terms. An electronic signature has the same effect as an original.

Provider	Client
Signature: _____	Signature: _____
Name: Daniel Cooke	Name: [Signer name]
Title: Founder	Title: [Signer title]
Email: hello@luwahtechologies.com	Email: [Signer email]
Date:	Date:
Notice address: [Provider notice address]	Notice address: [Client notice address]

Exhibit A: Statement of Work

Use one SOW per project or recurring service. Every SOW incorporates the Master Services Agreement. Keep the fields below in this order so the contract tracker can read them.

SOW No.	[SOW-YYYY-NN]
Client	[Client legal name]
MSA reference	[MSA-YYYY-NN dated Month DD, YYYY]
SOW Effective Date	[Month DD, YYYY]
Start Date	[Month DD, YYYY]
Target Completion Date	[Month DD, YYYY]
End Date or Term	[Fixed end date, or month to month after an initial period, with the notice period]
Total value	[Fixed fees plus estimated hourly fees, excluding pass-through costs]

1. Objective

[One paragraph. What Client wants to be true when this SOW is complete, and why.]

2. Scope of Services

- **[In-scope item]**
- **[In-scope item]**
- **[In-scope item]**

3. Out of Scope

- **[Item that is excluded and would need a Change Order]**
- **[Item that is excluded]**

4. Deliverables and Acceptance Criteria

Write each acceptance criterion as a test a reasonable person can run and pass or fail. Acceptance of the last Deliverable is Project Completion under Section 10.2.

No.	Deliverable	Acceptance criteria	Target date

5. Fees and Payment Schedule

Milestone	Trigger	Amount (USD)	Due
Deposit	Signature of this SOW	[50% of fixed fee]	On signing
[Milestone]	[Acceptance of Deliverable N]	[Amount]	[Net 14 from invoice]
Final	Project Completion	[Balance]	Net 14 from invoice

6. Rate Schedule

Applies to hourly work, support after the warranty period, and Change Orders unless a Change Order states a fixed price.

Service	Rate (USD)	Unit
[Development and automation]	[Rate]	Hour, 15-minute increments
[Consulting and training]	[Rate]	Hour, 15-minute increments
[Support and maintenance retainer]	[Monthly fee]	Month, includes [N] hours

7. Third-Party Costs

Item	Paid by	Estimated cost (USD)	Notes
[Hosting]	[Client directly]	[Amount per month]	
[Domain, licenses, API usage]	[Client directly, or Provider at cost]	[Amount]	

8. Client Responsibilities and Dependencies

- [Access, accounts or credentials Client must provide, and by when]
- [Content, data or decisions Client must provide, and by when]
- [Third-party approvals the project depends on]

9. Assumptions

- [Assumption the estimate relies on]
- [Assumption the estimate relies on]

10. Terms That Differ From the Agreement

Name the section of the Agreement and state the change. Leave blank if there is none.

Agreement section	Change for this SOW

Signatures

Each Party signs below to agree to these terms. An electronic signature has the same effect as an original.

Provider	Client
Signature: _____	Signature: _____
Name: Daniel Cooke	Name: [Signer name]
Title: Founder	Title: [Signer title]
Email: hello@luwahtechnologies.com	Email: [Signer email]
Date:	Date:

Exhibit B: Background IP Schedule

List every item of Provider Background IP expected to be incorporated in Deliverables. Add items for a later SOW by Change Order. This schedule is mandatory. If nothing applies, write NONE in the first row. The example rows are Provider's usual reusable assets and must be edited before sending.

Item	Description	Where it is used	License to Client
n8n workflow library	Reusable sub-workflows and patterns for error handling, notification, deduplication and scheduling	Automation Deliverables	Section 7.3
Web starter and components	Next.js site starter, layout components, design tokens, forms and deployment configuration	Website Deliverables	Section 7.3
Operations scripts	Backup, monitoring, deployment and health-check scripts and templates	Hosting and maintenance Deliverables	Section 7.3
Documentation templates	Runbook, handover and training document templates	All Deliverables	Section 7.3
[Item]	[Description]	[Where used]	Section 7.3

Exhibit C: Change Order

Use a Change Order for any work outside a signed SOW, or to change a Deliverable, date or fee. Work on the change starts only after both Parties sign.

Change Order No.	[CO-YYYY-NN]
SOW No.	[SOW-YYYY-NN]
Client	[Client legal name]
Date	[Month DD, YYYY]
Requested by	[Name and Party]

1. Description of the Change

[What changes, and why.]

2. Effect on Deliverables and Scope

Deliverable	Change	New acceptance criteria

3. Effect on Fees

Item	Basis	Amount (USD)	Due
	[Fixed, or hours at the SOW rate]		[Net 14 from invoice]
Revised total value of SOW		[New total]	

4. Effect on Schedule

Date	Was	Becomes
Target Completion Date		
[Other milestone]		

Signatures

Each Party signs below to agree to these terms. An electronic signature has the same effect as an original.

Provider	Client
Signature: _____	Signature: _____
Name: Daniel Cooke	Name: [Signer name]
Title: Founder	Title: [Signer title]
Email: hello@luwahtechologies.com	Email: [Signer email]
Date:	Date: